

SENATE No. 1639

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting inmate safety and the expenditure of state funds.

PETITION OF:

NAME:

Michael J. Barrett

DISTRICT/ADDRESS:

Third Middlesex

SENATE No. 1639

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 1639) of Michael J. Barrett for legislation to protect inmate safety and the expenditure of state funds. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1479 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting inmate safety and the expenditure of state funds.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 127 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by adding the following section:-

3 Section 172. No inmate or prisoner placed in the custody of a sheriff shall be transported
4 outside of the commonwealth for the purposes of labor or public or community service
5 programming unless there exists a bona fide public health or safety emergency. If such a bona
6 fide public health or safety emergency exists, the sheriff shall file a description of the purpose,
7 the proposed mode of transportation, the estimated duration of the time to be spent outside of the
8 commonwealth, the housing and security arrangements to be made during the proposed stay and
9 the estimated cost of the entire undertaking with the secretary of administration and finance, the
10 secretary of the executive office of public safety and security, the chairs of the joint committee

11 on public safety and homeland security and the chairs of the senate and house committees on
12 ways and means and shall obtain written approval from the secretary of administration and
13 finance and the secretary of the executive office of public safety and security prior to the
14 commencement of said transport.